Superior Court of the State of California
County of Orange

TENTATIVE RULINGS FOR DEPARTMENT C32
JUDGE LEE L. GABRIEL, Dept. C32

Date: May 26, 2026

APPEARANCES: Department C32 conducts non-evidentiary proceedings, such as law and motion, remotely, by Zoom videoconference. All counsel and self-represented parties appearing for such hearings must check-in online through the Court's civil video appearance website at https://www.occourts.org/media-relations/civil.html prior to the commencement of their hearing. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Check-in instructions and instructional video are available at https://www.occourts.org/mediarelations/aci.html. The Court's "Appearance Procedures and Information--Civil Unlimited and Complex" ("Appearance Procedures") and "Guidelines for Remote Appearances" ("Guidelines") are also available at https://www.occourts.org/mediarelations/aci.html.

Parties preferring to appear in-person for law and motion hearings may do so pursuant to Code of Civil Procedure § 367.75 and OCLR 375.

All hearings are open to the public.

If you desire a transcript of the proceedings, you must provide your own court reporter (unless you have a fee waiver and request a court reporter in advance). Parties must comply with the Court's policy on the use of privately retained court reporters which can be found at:

- Civil Court Reporter Pooling; and
- Court Reporter Interpreter Services

These are the Court's tentative rulings. They may become an order if the parties do not appear at the hearing. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

If the parties agree to submit on the Court's tentative rulings, please call the Court Clerk to inform the court that all parties submit on the Court's tentative ruling **(657-622-5232)**. The tentative ruling will then become the order of the Court upon a party or parties informing the Court that all parties submit to the Court's tentative ruling.

No filming, broadcasting, photography, or electronic recording is permitted of the video session pursuant to California Rules of Court, rule 1.150 and Orange County Superior Court rule 180.

<table>
<tr><th>#</th><th>Case Name</th><th>Tentative</th></tr>
<tr><td>1.</td><td>BLATT VS. COUNTY OF ORANGE
2025-01481733</td><td>MOTION TO APPEAR PRO HAC VICE

The Application of William D. Adams to Appear Pro Hac Vice for defendants County of Orange and Sierra Aviation Group, Inc. is GRANTED.

Moving attorney has satisfied all the requirements of California Rules of Court, Rule 9.40.

Moving attorney to give notice.</td></tr>
<tr><td>2.</td><td>TC BROTHERS ENTERPRISES, INC. VS. BOWLERO CORPORATION
2023-01313029</td><td>1. MOTION TO COMPEL ANSWERS TO SPECIAL INTERRROGATORIES

Defendant AMF Bowling Centers Inc.’s motion to compel plaintiff TC Brothers Enterprises, Inc. dba Servpro of Walnut, Hacienda Heights, Rowland Heights to serve responses to Defendant’s Special Interrogatories, Set One is DENIED as MOOT.

Plaintiff served verified responses without objections to Defendant’s Special Interrogatories, Set One, on December 8, 2025. (Reed Decl., ¶ 9.) Thus, the Motion is moot.

Defendant’s request for sanctions is DENIED. Plaintiff has shown it acted with substantial justification in submitting responses in a timely manner after counsel had a personal emergency.

Moving Defendant to give notice.

2. MOTION TO COMPEL PRODUCTION

Defendant AMF Bowling Centers Inc.’s motion to compel plaintiff TC Brothers Enterprises, Inc. dba Servpro Of Walnut, Hacienda Heights, Rowland Heights to serve verified, objection-free responses to Defendant’s Request for Production of Documents, Set One, is DENIED as MOOT.

Plaintiff served verified responses without objections to Defendant’s Request for Production of Documents, Set One, on December 8, 2025. (Reed Decl., ¶ 9.) Thus, the Motion is moot.

Defendant’s request for sanctions is DENIED. Plaintiff has shown it acted with substantial justification in submitting responses in a timely manner after counsel had a personal emergency.

Moving Defendant to give notice.</td></tr>
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		3. **MOTION TO COMPEL RESPONSE TO REQUESTS FOR ADMISSIONS** Defendant AMF Bowling Centers Inc.'s motion to deem matters set forth in Defendant's Requests for Admission to plaintiff TC Brothers Enterprises, Inc. dba Servpro of Walnut, Hacienda Heights, Rowland Heights admitted, is DENIED as MOOT. Plaintiff served verified responses without objections to Defendant's Requests for Admission, Set One, on December 8, 2025. (Reed Decl., ¶ 9.) Thus, the Motion is moot. Defendant's request for sanctions is DENIED. Plaintiff has shown it acted with substantial justification in submitting responses in a timely manner after counsel had a personal emergency. Moving Defendant to give notice.
3.	**CALVILLO VS. VILLEGAS** **2025-01471415**	1. **MOTION TO COMPEL FURTHER RESPONSES TO FORM INTERROGATORIES** Defendants Germaine Y. Ninete and Serissa Frankee Ninete Villegas' motion to compel Plaintiff Daniel Rico Calvillo to provide a further, verified response to Defendants' Form Interrogatories, Set One, Nos. 2.7, 6.7, 7.1, 7.2, 10.3, and 20.11 is GRANTED. <u>Form Interrogatory No. 2.7</u>: Form Interrogatory No. 2.7 seeks (a) the name and address of each school or other academic or vocational institution Plaintiff attended beginning with high school; (b) the dates attended; (c) the highest grade level completed; and (d) the degrees received. Plaintiff objected to the interrogatory on the grounds that it seeks irrelevant information, is not reasonably calculated to lead to discovery of admissible evidence, seeks information equally available to Defendants and invades Plaintiff's right to privacy. The burden is on the responding party to justify any objection or failure fully to answer the interrogatories. (*Coy v. Sup.Ct. (Wolcher)* (1962) 58 Cal.2d 210, 220-221; *Fairmont Ins. Co. v. Sup.Ct. (Stendell)* (2000) 22 Cal.4th 245, 255.) Plaintiff has not filed an opposition and failed to justify the objections. Therefore, the request to compel a further response to Form Interrogatory No. 2.7 is GRANTED. <u>Form Interrogatory No. 6.7</u>: Form Interrogatory No. 6.7 asks if any health care provider advised Plaintiff that he may require future or additional treatment for any injuries that he attributes to the incident? If so, for each injury the

interrogatory asks Plaintiff to state: (a) the name and address of each health care provider; (b) the complaints for which the treatment was advised; (c) the nature, duration, and estimated cost of the treatment.

Plaintiff responded by asserting objections and subject to the objections stating, "Troy Mounts, M.D.– Recommendation for posterior lumbar decompression from L4-S1." Plaintiff's response fails to provide the address of the health care provider, complaints for which the treatment was advised, and the nature, duration, and estimated cost of the treatment.

As to the objections, Plaintiff has not filed an opposition and failed to justify the objections.

Therefore, the request to compel a further response to Form Interrogatory No. 6.7 is GRANTED.

<u>Form Interrogatory No. 7.1</u>:

Form Interrogatory No. 7.1 asks if Plaintiff attributes any loss of or damage to a vehicle or other property to the incident and if so to: (a) describe the property; (b) describe the nature and location of the damage to the property; (c) state the amount of damage you are claiming for each item of property and how the amount was calculated; and (d) if the property was sold, state the name, Address, and telephone number of the seller, the date of sale, and the sale price.

Plaintiff responded by objecting and subject to the objections stating "Yes. Plaintiff will provide any and all documents to date pertaining to property damage and evaluation(s)." Plaintiff's response is incomplete since it fails to provide a response to subdivisions (a)-(d) of the interrogatory.

Therefore, the request to compel a further response to Form Interrogatory No. 7.1 is GRANTED.

<u>Form Interrogatory No. 7.2</u>:

Form Interrogatory No. 7.2 asks if a written estimate or evaluation has been made for any item of property referred to in Form Interrogatory No. 7.1 and if so for each estimate or evaluation: (a) the name, ADDRESS, and telephone number of the PERSON who prepared it and the date prepared; (b) the name, ADDRESS, and telephone number of each PERSON who has a copy; (c) the amount of damage stated.

Plaintiff responded by objecting and subject to the objections stating, "Plaintiff doesn't know anything about the car, because the registered owner was his uncle, who took care of it."

Plaintiff's response fails to comply with Code of Civil Procedure 2030.220 section (c) which states, "If the responding party does not have personal knowledge sufficient to respond fully to an interrogatory, that party shall so state, but shall make a reasonable and good faith effort to obtain the information by inquiry to other natural persons or organizations, except where the information is equally available to the propounding party."

As to the objections, Plaintiff has not filed an opposition and failed to justify the objections.

Therefore, the request to compel a further response to Form Interrogatory No. 7.2 is GRANTED.

<u>Form Interrogatory No. 10.3</u>:

Form Interrogatory No. 10.3 asks if at any time after the incident, Plaintiff sustained injuries and if so, for each incident giving rise to an injury state: (a) the date and the place it occurred; (b) the name, address, and telephone number of any other person involved; (c) the nature of any injuries you sustained; (d) the name, address, and telephone number of each health care provider who you consulted or who examined or treated you; and (e) the nature of the treatment and its duration.

Plaintiff objected to the interrogatory without providing a substantive response. Plaintiff has not filed an opposition and failed to justify the objections.

Therefore, the request to compel a further response to Form Interrogatory No. 10.3 is GRANTED.

<u>Form Interrogatory No. 20.11</u>:

Form Interrogatory No. 20.11 asks for the name, address, and telephone number of each owner and each person who has had possession since the incident of each vehicle involved in the incident.

Plaintiff responded by objecting and subject to the objection states, Plaintiff's car's registered owner was his uncle, Plaintiff returned the car to the owner right after the Incident.

Plaintiff's response is inadequate since it states Plaintiff's uncle is the owner but fails to provide the uncle's name, address, and telephone number. Plaintiff's response fails to comply with Code of Civil Procedure 2030.220.

Therefore, the request to compel a further response to Form Interrogatory No. 20.11 is GRANTED.

Plaintiff is ordered to provide further responses to Form Interrogatory Nos. 2.7, 6.7, 7.1, 7.2, 10.3, and 20.11 within 20 days of the notice of this ruling.

Plaintiff is ordered to pay $804 in sanctions to Defendants within 20 days of the notice of this ruling.

Moving Defendants to give notice.

2. MOTION TO COMPEL FURTHER RESPONSES TO SPECIAL INTERROGATORIES

Defendants Germaine Y. Ninete and Serissa Frankee Ninete Villegas's motion to compel Plaintiff Daniel Rico Calvillo to provide a further, verified response to Defendants' Special Interrogatories, Set One, No. 5, is GRANTED.

Code of Civil Procedure section 2030.300 provides in pertinent part: "(a) On receipt of a response to interrogatories, the propounding party may move for an order compelling a further response if the propounding party deems that any of the following apply: [¶] (1) An answer to a particular interrogatory is evasive or incomplete. [¶] (2) An exercise of the option to produce documents under Section 2030.230 is unwarranted or the required specification of those documents is inadequate. [¶] (3) An objection to an interrogatory is without merit or too general."

Defendants move to compel a further response to Special Interrogatory No. 5 which asks Plaintiff to "State the total amount of medical expenses billed for treatment incurred as a result of this INCIDENT."

Plaintiff responded to the interrogatory by objecting and subject to the objections stating, "Will provide all medical bills to date."

The burden is on the responding party to justify any objection or failure fully to answer the interrogatories. (*Coy v. Sup.Ct. (Wolcher)* (1962) 58 Cal.2d 210, 220-221; *Fairmont Ins. Co. v. Sup.Ct. (Stendell)* (2000) 22 Cal.4th 245, 255.) Plaintiff has not filed an opposition and failed to justify the objections.

To the extent Plaintiff seeks to exercise the option to produce medical bills pursuant to Code of Civil Procedure section 2030.230, Plaintiff has failed to comply with the requirements of section 2030.230 which provides that "If the answer to an interrogatory would necessitate the preparation or the making of a compilation, abstract, audit, or summary of or from the documents of the party to whom the interrogatory is directed, and if the burden or expense of preparing or making it would be substantially the same for the party propounding the interrogatory as for the responding party, it is a sufficient answer to that interrogatory to refer to this section and to specify the writings from which the answer may be derived or ascertained. This specification shall be in sufficient detail to permit the propounding party to locate and to identify, as readily as the responding party can, the documents from which the answer may be ascertained."

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Therefore, the request to compel a further response to Special Interrogatory No. 5 is GRANTED. Plaintiff is ordered to provide a further response to Special Interrogatory No. 5 within 20 days of the notice of this ruling.
Plaintiff is ordered to pay $711 in sanctions to Defendants within 20 days of the notice of this ruling.
Moving Defendants to give notice.
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<tr><td>4.</td><td>PRIMARY CARE ASSOCIATES OF CALIFORNIA, INC. VS. BZ HEALTH NETWORK OF CALIFORNIA, INC.
2025-01451241</td><td>
1. MOTION TO COMPEL FURTHER RESPONSES TO SPECIAL INTERROGATORIES
Defendants BZ Health Network of California, Inc. and BZ Health of California’s Motion to Compel Further Responses to Special Interrogatories is DENIED as moot.
Defendants’ request for sanctions is DENIED.
Plaintiff’s objections are overruled.
Plaintiff served further responses on January 8, 2026 which substantively changed the responses. Thus, Defendants’ motion is moot.
<u>Sanctions</u>
“The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a further response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2030.300(d).)
The Court finds Plaintiff acted with substantial justification in opposing the Motion.
2. MOTION TO COMPEL PRODUCTION
Defendants BZ Health Network of California, Inc. and BZ Health of California’s Motion to Compel Further Responses to Requests for Production is DENIED as moot.
Defendants’ request for sanctions is DENIED.
Plaintiff’s objections are overruled.
Plaintiff served further responses on January 8, 2026 which substantively changed the responses. Thus, Defendants’ motion is moot.
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		Sanctions “Except as provided in subdivision (j), the court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel further response to a demand, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. (Code Civ. Proc., § 2031.310(h).) The Court finds Plaintiff acted with substantial justification in opposing the Motion.
5.	**DANIELS VS. SAN LEON APARTMENTS LLC 2025-01511127**	**MOTION FOR ORDER STAYING THIS ACTION UNTIL THE COMPLETION OF ARBITRATION** Defendant San Leon Apartments LLC’s Motion to Compel Arbitration is GRANTED. Defendant moves to compel arbitration and to stay this action pursuant to Code of Civil Procedure section 1281.7 and consistent with the Federal Arbitration Act (9 U.S.C. § 1, *et seq*.) (“FAA”). Defendant’s objections are OVERRULED. Legal Standard Both state and federal law provide for enforcement of arbitration agreements. (Code Civ. Proc., §§ 1280 et seq.; 9 U.S.C. §§ 1 et seq.) The FAA governs contractual arbitration in written contracts involving interstate commerce, foreign commerce, or maritime transactions. (9 U.S.C. §§ 1, 2; *AT&T Mobility LLC v. Concepcion* (2011) 563 U.S. 333, 336.) Under the FAA, the court must compel arbitration of claims covered by an enforceable arbitration agreement. (9 U.S.C. §§ 2, 4.) The moving party may also seek a stay of the action pending the outcome of the arbitration. (9 U.S.C. § 3.) Similarly, under the Code of Civil Procedure sections 1281.2 and 1281.4, a party to an arbitration agreement may move to compel arbitration and stay the action if another party to the agreement refuses to arbitrate. “A petition pursuant to Section 1281.2 may be filed in lieu of filing an answer to a complaint. The petitioning defendant shall have 15 days after any denial of the petition to plead to the complaint.” (Code Civ. Proc., § 1281.7.) Existence of Arbitration Agreement An arbitration agreement governed by the FAA is enforceable “save upon such grounds as exist at law or in equity for the revocation of any contract.” (9 U.S.C. § 2.) “In determining the rights of parties to

		enforce an arbitration agreement within the FAA's scope, courts apply state contract law while giving due regard to the federal policy favoring arbitration." (*Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC* (2012) 55 Cal.4th 223, 236.) The court determines the existence of an agreement to arbitrate in a summary process. (*Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 164.) The trial court sits as a trier of fact, weighing all the affidavits, declarations, and other documentary evidence, as well as oral testimony received at the court's discretion, to reach a final determination. (*Ibid*.) The burden of persuasion is always on the moving party to prove the existence of an arbitration agreement with the opposing party by a preponderance of the evidence; however, the burden of production may shift in a three-step process. (*Gamboa, supra,* 72 Cal.App.5th at p. 164-165.) First, the moving party bears the burden of producing "prima facie evidence of a written agreement to arbitrate the controversy." (*Id*. at p. 165.) The moving party can meet its initial burden by attaching to the motion or petition a copy of the arbitration agreement purporting to bear the opposing party's signature. (*Ibid*.) Alternatively, the moving party can meet its burden by setting forth the agreement's provisions in the motion. (*Ibid*.) For this step, "it is not necessary to follow the normal procedures of document authentication." (*Ibid*.) If the moving party meets its initial prima facie burden and the opposing party does not dispute the existence of the arbitration agreement, then nothing more is required for the moving party to meet its burden of persuasion. (*Gamboa, supra,* 72 Cal.App.5th at p. 165.) However, if the moving party meets its initial prima facie burden and the opposing party disputes the agreement, then in the second step, the opposing party bears the burden of producing evidence to challenge the authenticity of the agreement. (*Ibid*.) The opposing party can do this in several ways. (*Ibid*.) For example, the opposing party may testify under oath or declare under penalty of perjury that the party never saw or does not remember seeing the agreement, or that the party never signed or does not remember signing the agreement. (*Ibid*.) If the opposing party meets its burden of producing evidence, then in the third step, the moving party must establish with admissible evidence a valid arbitration agreement between the parties. (*Gamboa, supra,* 72 Cal.App.5th at p. 165.) The burden of proving the agreement by a preponderance of the evidence remains with the moving party. (*Ibid*.) Here, Defendant seeks to compel arbitration pursuant to a document titled "Addendum for Arbitration of Disputes and Class Action Waiver" ("Arbitration Agreement"). (Giron Decl., ¶ 6, Ex. B.) The Arbitration Agreement is attached to a Lease Agreement entered into by Plaintiff for an apartment unit at the San Leon Apartments located at 115 San Leon, Irvine CA, with a lease term of 5/1/23 –

		5/31/24. (Giron Decl., ¶ 5, Ex. A.) The incident at issue in this action occurred on 2/22/24, during the Lease term. Even if it occurred after the Lease term expired, the Lease provides that it "shall automatically continue from month to month" and in that event "the terms and conditions of the Lease shall apply . . . ." (Giron Decl., ¶ 5, Ex. A, ¶ 2.1.) Plaintiff signed both the Lease and Arbitration Agreement on 4/7/23. (Giron Decl. ¶¶ 5, 6, Exs. A, B.) Plaintiff also initialed the Arbitration Agreement in two places acknowledging she has access to the internet and had an opportunity to review the JAMS rules and that she had an opportunity to seek the advice of counsel regarding arbitration. (Giron Decl. ¶ 6, Ex. B.) The Arbitration Agreement provides in relevant part: 1. Arbitration of Disputes. Any dispute, claim or controversy arising out of or relating to this Lease or your tenancy with Landlord, including the breach, termination, enforcement, interpretation or validity thereof, and including the determination of the scope or applicability of this provision to arbitrate ("Claim" or "Claims") shall be determined by binding arbitration in the County in which the subject Premises is located, before one neutral arbitrator. Except for the exclusions listed below, arbitration shall be the exclusive and binding remedy for any Claims between the Parties and shall be used instead of any court action or jury trial, which are hereby expressly waived. The Lease and this arbitration and class action waiver Addendum shall be governed by, and all questions and disputes regarding arbitrability shall be determined in accordance with, the Federal Arbitration Act, 9 U.S.C. Sections 1-16, notwithstanding any other choice of law provision. The arbitrator shall have the exclusive authority to resolve any Claims, including any dispute relating to the interpretation, applicability, enforceability or formation of this agreement and any claim that all or any part of this agreement is unconscionable, void or voidable. (Giron Decl. ¶ 6, Ex. B.) The following bold capitalized text appears directly above Plaintiff's signature: **NOTICE: BY SIGNING IN THE SPACE BELOW YOU ARE AGREEING TO HAVE ANY DISPUTE ARISING OUT OF THE MATTERS INCLUDED IN THE ARBITRATION OF DISPUTES PROVISION DECIDED BY NEUTRAL ARBITRATION AS PROVIDED BY THE FEDERAL ARBITRATION ACT AND YOU ARE GIVING UP ANY RIGHTS YOU MIGHT POSSESS TO HAVE THE DISPUTE LITIGATED IN A COURT OR BY JURY TRIAL. BY**

SIGNING BELOW YOU ARE GIVING UP YOUR JUDICIAL RIGHTS TO DISCOVERY AND APPEAL, UNLESS THOSE RIGHTS ARE OTHERWISE SPECIFICALLY INCLUDED IN THIS ADDENDUM. IF YOU REFUSE TO SUBMIT TO ARBITRATION AFTER AGREEING TO THIS PROVISION, YOU MAY BE COMPELLED TO ARBITRATE UNDER THE AUTHORITY OF APPLICABLE LAW. YOUR AGREEMENT TO THIS ARBITRATION PROVISION IS VOLUNTARY.

I HAVE READ AND UNDERSTAND THE FOREGOING AND AGREE TO SUBMIT DISPUTES, AS DESCRIBED ABOVE, TO NEUTRAL ARBITRATION.

(*Ibid*. [emphasis in original].)

In addition to attaching the Arbitration Agreement to the motion, Defendant also set out the above relevant terms verbatim in the motion. Thus, Defendant has met its initial burden.

Further, because the Arbitration Agreement explicitly provides that it "shall be governed by" the FAA, "notwithstanding any other choice of law provision", Defendant has established the FAA applies. (See *Victrola 89, LLC*, supra, 46 Cal.App.5th at pp. 345-346 [where arbitration agreement states its enforcement is governed by the FAA, both the procedural and substantive provisions of FAA apply].)

Plaintiff does not dispute the applicability of the FAA. Nor does Plaintiff dispute the existence or validity of the Arbitration Agreement. Instead, she only argues her trip and fall claims do not arise out of the Lease Agreement.

Plaintiff's arbitrability arguments are improperly made before this court. Such questions are to be determined by the arbitrator pursuant to the terms of the Arbitration Agreement. When parties "clearly and unmistakably" demonstrate their intent to have the arbitrator decide arbitrability, those issues must be referred to the arbitrator. (*Rent-A-Center, W., Inc. v. Jackson* (2010) 561 U.S. 63, 69, 70, fn. 1; *Tiri v. Lucky Chances, Inc.* (2014) 226 Cal.App.4th 231, 240-242 [confirming the analysis is the same under both state and federal law].)

Here, the Arbitration Agreement clearly and unmistakably provides "[t]he arbitrator shall have the exclusive authority to resolve any Claims, including any dispute relating to the interpretation, applicability, enforceability or formation of this agreement and any claim that all or any part of this agreement is unconscionable, void or voidable." (Giron Decl. ¶ 6, Ex. B.) Plaintiff makes no argument to the contrary. In fact, Plaintiff's opposition is silent as to the

		delegation clause. The court therefore finds the Arbitration Agreement, including the delegation clause, is valid and enforceable. (See *Rent-A-Center, W., Inc.*, supra, 561 U.S. at p. 72 ["unless (the opposing party) challenged the delegation provision specifically, we must treat it as valid under § 2 (of the FAA), and must enforce it under §§ 3 and 4, leaving any challenge to the validity of the Agreement as a whole for the arbitrator"].) The motion is GRANTED. The Court STAYS this action pending resolution of the parties' arbitration. (Code Civ. Proc., § 1281.4; 9 U.S.C. § 3.) The Court sets an OSC re: ADR for 12/4/2026 at 9:00 a.m., in Department C32.
6.	**ONE LLP VS. MOSES** **2019-01086815**	**MOTION FOR ORDER TO STAY PROCEEDINGS** Defendant Jeff Moses's Motion to Stay Enforcement Pending Appeal is DENIED. There is no proof of service filed showing the motion was served on Plaintiff. (Cal. Rules of Ct., rule 3.1300(c) ["Proof of service of the moving papers must be filed no later than five court days before the time appointed for the hearing."].) On 4/21/26, Defendant filed a document entitled "Proof of Service" under ROA 362 which is an email reflecting Court eFiling of a "Motion – Other" and "Declaration – Other." However, this is not a proof of service because it does not adequately identify the motion or state by what means other parties were served with the documents. Defendant asserts he is a 60+ year old man with no income who can barely afford basic living expenses. However, Defendant does not submit admissible evidence demonstrating his inability to pay such as a sworn declaration with financial records demonstrating inability to pay. Moreover, Defendant provides no authority demonstrating the court can properly issue a stay in this instance. Money judgments may be stayed pending appeal only upon posting security, usually in the form of a bond or undertaking. (Code Civ. Proc., § 917.1(a)(1) and *Dowling v. Zimmerman* (2001) 85 Cal.App.4th 1400, 1429.) There is no indication Defendant posted a bond or undertaking for his appeal. Based on the foregoing, the motion is DENIED.

7.	LAGUNA CREST ENTERPRISE, INC VS. SCINTO 2021-01211808	**PETITION TO CONFIRM ARBITRATION AWARD** Defendant/Cross-complainant Chapwood, L.P.'s (Chapwood) Petition to Confirm Arbitration Award and Request Entry of Judgment is GRANTED. Chapwood moves for an order confirming the arbitration award and entering judgment. <u>Chapwood's Objections</u> Chapwood's objections to the Declaration of Josef Cowan are OVERRULED. Chapwood's objections to the Declaration of Michael J. Callon are OVERRULED. <u>Coast Concrete and Masonry, Inc.'s (CCM) Objections</u> CCM's objections to the Reply Declaration of Daniel Scinto are SUSTAINED as to objections number 1 and 2 and OVERRULED as to the remaining objections. CCM's objections to the Reply Declaration of Jim Abeltin are SUSTAINED as to objections number 1, 2, 11-16 (erroneously numbered 7-12) and OVERRULED as to the remaining objections. <u>Laguna Crest Enterprise, Inc.'s (LCE) Objections</u> LCE's objections to the Reply Declaration of Daniel Scinto are SUSTAINED as to the portions located at 1:14-19, 2:1-3, and Exhibit 3, and OVERRULED as to the remaining objections. LCE's objections to the Reply Declaration of Jim Abeltin are SUSTAINED as to the portions located at 1:7-3:1, 3:3-5, 3:14-5:28, 6:1-10, 6:14-15, 7:1-25, and Exhibits 2, 3, 9 and OVERRULED as to the remaining objections. LCE's objections to the Reply Declaration of Jacqueline Fernandes are SUSTAINED as to the portions located at 1:24-28, 2:1-21, 2:26-3:13, and Exhibits 2 through 6 and OVERRULED as to the remaining objections. <u>Legal Standard</u> "Any party to an arbitration in which an award has been made may petition the court to confirm, correct or vacate the award." (Code Civ. Proc., § 1285.) A petition to confirm an arbitration award must "(a) Set forth the substance of or have attached a copy of the agreement to arbitrate unless the petitioner denies the existence of such an agreement. (b) Set forth the names of the arbitrators. (c) Set forth or have attached a copy of the award and the written opinion of

		the arbitrators, if any." (Code Civ. Proc., § 1285.4.) If a petition to confirm an arbitration award is duly served and filed, "the court shall confirm the award as made, whether rendered in this state or another state, unless in accordance with this chapter it corrects the award and confirms it as corrected, vacates the award or dismisses the proceeding." (Code Civ. Proc., § 1286.) If the award is confirmed, "judgment shall be entered in conformity therewith." (Code Civ. Proc., § 1287.4.) A response to a petition may request the court to dismiss the petition or to confirm, correct or vacate the award. (Code Civ. Proc., § 1285.2) Code of Civil Procedure section 1286.2, subdivision (a) provides the court may vacate an award if it determines, *inter alia*: (3) The rights of the party were substantially prejudiced by misconduct of a neutral arbitrator. (5) The rights of the party were substantially prejudiced by the refusal of the arbitrators to postpone the hearing upon sufficient cause being shown therefor or by the refusal of the arbitrators to hear evidence material to the controversy or by other conduct of the arbitrators contrary to the provisions of this title. (6) An arbitrator making the award either: (A) failed to disclose within the time required for disclosure a ground for disqualification of which the arbitrator was then aware; or (B) was subject to disqualification upon grounds specified in Section 1281.91 but failed upon receipt of timely demand to disqualify himself or herself as required by that provision. "Under the California Arbitration Act, '[t]he scope of judicial review of arbitration awards is extremely narrow because of the strong public policy in favor of arbitration and according finality to arbitration awards.'" (*Branches Neighborhood Corp. v. CalAtlantic Group, Inc.* (2018) 26 Cal.App.5th 743, 750 [citations omitted].) <u>Duty to Disclose</u> Code of Civil Procedure section 1281.9, subdivision (a) provides, "In any arbitration pursuant to an arbitration agreement, when a person is to serve as a neutral arbitrator, the proposed neutral arbitrator shall disclose all matters that could cause a person aware of the facts to reasonably entertain a doubt that the proposed neutral arbitrator would be able to be impartial, . . ." This includes "[t]he existence of any ground specified in Section 170.1 for disqualification of a judge." Standard 7 of the Ethics Standards for Neutral Arbitrators in Contractual Arbitration further enumerates specific categories of

		relationships that must be disclosed, including relationships with any party or counsel for a party. "The general requirement that a proposed neutral arbitrator disclose any matter that could reasonably cause a person aware of the facts to entertain a doubt that the proposed arbitrator would be impartial (§ 1281.9, subd. (a)) involves an objective test that focuses on a reasonable person's perception of bias and does not require actual bias. 'Impartiality' entails the 'absence of bias or prejudice in favor of, or against, particular parties or classes of parties, as well as maintenance of an open mind.' 'Judges, like all human beings, have widely varying experiences and backgrounds. Except perhaps in extreme circumstances, those not directly related to the case or the parties do not disqualify them.'" (*Mt. Holyoke Homes, L.P. v. Jeffer Mangels Butler &Mitchell, LLP* (2013) 219 Cal.App.4th 1299, 1311 [cleaned up].) "'If the impression of possible bias rule is not to emasculate the policy of the law in favor of the finality of arbitration, the impression must be a reasonable one.' [Citation.] An arbitrator must be able to determine at the outset, with reasonable certainty, what information must be disclosed. It is reasonable to expect that a neutral arbitrator will be able to identify, without much difficulty, the information that must be disclosed regarding the particular relationships and interests that are clearly defined in section 1281.9 and standard 7 of the Ethics Standards. It may well be more difficult for the arbitrator to determine whether a disclosure must be made under the *general* standard of appearance of partiality, because that standard, although objective, is not clear-cut . . . . The arbitrator cannot reasonably be expected to identify and disclose all events in the arbitrator's past, including those not connected to the parties, the facts, or the issues in controversy, that conceivably might cause a party to prefer another arbitrator. Such a broad interpretation of the appearance-of-partiality rule could subject arbitration awards to after-the-fact attacks by losing parties searching for potential disqualifying information only after an adverse decision has been made. [Citation.] Such a result would undermine the finality of arbitrations without contributing to the fairness of arbitration proceedings." (*Id*. at p. 1312 [citation omitted].) <u>Alleged Required Disclosures</u> LCE contends Klinger failed to disclose multiple material relationships. Specifically, LCE contends Klinger failed to disclose she represented Jones & Associates (Lou Jones), the bond surety for Marina Landscape, Inc. (Marina), a company in which LCE's counsel, Josef Cowan, was a one-third shareholder for approximately ten years. (Cowan Decl., ¶ 3.) LCE contends when Cowan sold his Marina shares to his brother Robert Cowan in 2004, he engaged in difficult and contentious negotiations with Lou Jones to secure his release from indemnity obligations on performance and

		payment bonds he had personally guaranteed. (Cowan Decl., ¶ 9.) Given Klinger's representation of Lou Jones, LCE contends Klinger was aware of and materially involved in those contentious negotiations. (Cowan Decl., ¶ 9.) LCE further contends Klinger failed to disclose she had known Cowan's brother and partner in Marina, Robert, for many years through their joint service on a board or committee of the Associated General Contractors of America and through her representation of Lou Jones in connection with Marina. (Cowan Decl., ¶ 7.) LCE contends Cowan's relationship with Robert became strained and acrimonious in the early 2000s as a result of business disputes involving a separate company owned by Robert and Cowan's other brother, and Cowan and Robert remain estranged to this day. (Cowan Decl., ¶ 8.) LCE contends Klinger was required to but failed to disclose her relationship with Robert and her representation of Lou Jones with respect to Marina. <u>Whether Disclosures Were Required</u> "[S]ection 1286.2, subdivision (a)(6)(A), provides for vacatur only where the arbitrator fails to disclose a ground for disqualification 'of which the arbitrator was then aware.'" (*ECC Capital Corp. v. Manatt, Phelps & Phillips, LLP* (2017) 9 Cal.App.5th 885, 902.) "Section 1286.2, subdivision (a)(6)(A), requires actual awareness, not inquiry or constructive awareness." (*Id*. at p. 903 [citation omitted].) Thus, an arbitrator has no duty to disclose an issue he or she was not aware of at the time of the disclosures. (*Id*. at pp. 902-903.) LCE attaches as Exhibit A to the Cowan Declaration Klinger's Oath Form dated 1/24/24. While LCE and CCM contend these relationships were never disclosed on the Oath Form, they have not demonstrated Klinger had actual awareness of Cowan's relationship with Marina or his brother, Robert, *at the time the disclosures were made*. Rather, counsel for LCE states only that Klinger mentioned these relationships while engaging in "small talk" in the afternoon portion of day 7 of the evidentiary hearing. (Cowen Decl., ¶¶ 6-7.) As such, section 1286.2 subdivision (a)(6)(A) is inapplicable. (*See Rivera v. Shivers* (2020) 54 Cal.App.5th 82, 94 [finding § 1286.2(a)(6)(A) did not apply where the party moving to vacate introduced no evidence the arbitrator was aware opposing counsel was the son of his former mentor prior to the arbitration].) Moreover, LCE and CCM have not demonstrated Klinger was aware of any matter "that could reasonably cause a person aware of the facts to entertain a doubt that the proposed arbitrator would be impartial." (Code Civ. Proc., § 1281.9, subd. (a).)

While Cowen states his negotiations with Lou Jones “were difficult and contentious,” Cowan further states,, “I do not know the extent to which Arbitrator Klinger was aware of or involved with my negotiations with Lou Jones but given her representation of Lou Jones I believe it is highly likely she was aware of the negotiations and significantly involved with them.” (Cowan Decl., ¶ 9.) Thus, LCE’s contention regarding the depth of Klinger’s knowledge of and involvement in the negotiations is not based on any evidence, but only on Cowan’s personal belief based on her representation of Lou Jones.

Similarly, while Cowan also states his relationship with Robert “became extremely strained and acrimonious and [they] remain estranged to this day” (Cowan Decl., ¶ 8), Cowan does not demonstrate Klinger was actually aware of his business disputes with his brother or the resulting strained relationship.

Given the above, the Court finds LCE and CCM have failed to demonstrate grounds for vacatur based on the arbitrator’s failure to disclose pursuant to section 1286.2, subdivision (a)(6)(A).

<u>Timing of LCE and CCM’s Objections</u>

A proposed neutral arbitrator can be disqualified if a party serves a notice of disqualification. Failure to move within 15 days of the arbitrator’s disclosure statement waives the right to disqualify unless the arbitrator made a material omission or material misrepresentation in his or her disclosure. (Code Civ. Proc., § 1281.91, subd. (c).)

Subdivision (c) further states, “Except as provided in subdivision (d), in no event may a notice of disqualification be given after a hearing of any contested issue of fact relating to the merits of the claim or after any ruling by the arbitrator regarding any contested matter.”

Reading subdivision (c) in isolation, “if a basis for disqualification is not discovered until after the arbitration hearing has begun, either the party learning of the basis for disqualification would have no recourse or that party would be required to await the outcome of the arbitration and, if unfavorable, raise the ground for disqualification for the first time in a petition to vacate. Neither outcome would be sensible or fair, and the second would contravene long-settled policy.” (*Goodwin v. Comerica Bank, N.A*. (2021) 72 Cal.App.5th 858, 869 [citation omitted].)

“For this reason the statute contains an exception to subdivision (c), provided in subdivision (d) of section 1281.91. Subdivision (d) provides, ‘If any ground specified in Section 170.1 exists, a neutral arbitrator shall disqualify himself or herself upon the demand of any party made before the conclusion of the arbitration proceeding.’” (*Ibid*.) Section 170.1, which identifies grounds for disqualifying a

		judge, applies by reference to arbitrators and applies a standard identical to the standard in section 1281.9 requiring the arbitrator to disclose matters that "could cause a person aware of the facts to reasonably entertain a doubt that the proposed neutral arbitrator would be able to be impartial." (*Ibid*.) Thus, to obtain an arbitrator's disqualification, a party is "required to 'object 'at the earliest practicable opportunity after discovery of the facts constituting the ground for disqualification'', and in compliance with the more specific obligation under ethics standard 10(a)(4) to serve a notice of disqualification 'within 15 days after becoming aware of the omission or misrepresentation' in the arbitrator's disclosure statement." (*Id*. at p. 870.) By failing to do so, a party "forfeit[s] the right to demand disqualification when it subsequently learn[s] of the arbitrator's adverse fee award." (*Ibid*.) While Code of Civil Procedure section 1281.91, subdivision (c) provides that same subdivision shall not "limit the right of a party to vacate an award pursuant to Section 1286.2" this does not mean forfeiting a right to disqualify does not prevent vacatur of the award. (*See Cox v. Bonni* (2021) 30 Cal.App.5th 287, 308.) "In stating that the provisions of section 1281.91 do not limit a party's right to vacate an award under section 1286.2, it cannot have been the intent of the Legislature thereby to permit a party to hold a known ground for disqualification in reserve, ready to play as a trump card once the award issued." (*Ibid*.) Counsel for LCE became aware of the alleged conflict on 3/5/25 during the afternoon portion of day 7 of the 8-day evidentiary hearing. (Cowen Decl., ¶¶ 6-7.) Chapwood contends LCE did not raise any objection during the remainder of the hearing (concluding on 4/3/25), including in any closing briefs and reply briefs, but instead informed counsel for Chapwood on 10/17/25 (after the arbitrator's amended final award was issued) regarding the alleged disclosure issue. (Abeltin Reply Decl. (to CCM) at 1:10-14 (ROA 385.) Cowen states in his declaration, "I did not raise the undisclosed facts with Arbitrator Klinger or ask her to disqualify herself because doing so would have placed an enormous burden on LCE and would have prejudiced LCE in terms of being able to assert its claims and defenses in the arbitration because LCE, I am informed and believe, did not have the resources to fund additional expenses, which would have been substantial if LCE had to arbitrate the matter with a different arbitrator. Stuck between the proverbial rock and a hard place, it was my opinion that the best course of action would be for LCE to complete the arbitration and hope that Arbitrator Klinger would render a fair and balanced decision." (Cowen Decl., ¶ 12.) Cowen further states, "Arbitrator Klinger issued her award on September 10, 2025, and I was shocked to see that she awarded

		Chapwood $632,995 on its claims against LCE, and nothing on LCE's claims against Chapwood." (Cowen Decl., ¶ 13.) It was only after this adverse decision had been made that counsel for LCE then raised this issue of the arbitrator's disclosures. According to *Goodwin*, LCE was "required to "object 'at the earliest practicable opportunity after discovery of the facts constituting the ground for disqualification', and in compliance with the more specific obligation under ethics standard 10(a)(4) to serve a notice of disqualification 'within 15 days after becoming aware of the omission or misrepresentation' in the arbitrator's disclosure statement. (72 Cal.App.5th at p. 870.) As LCE did not do so, it forfeited the right to demand disqualification when it subsequently learned of the arbitrator's adverse fee award. Alternatively, CCM contends Cowen did not raise this issue with counsel for CCM until 2/12/26. (Callon Decl., ¶¶ 2, 3.) CCM then filed its amended response seeking vacatur on 2/23/26. Even if CCM's objection was timely, however, CCM's contentions as to Klinger's conduct fail to demonstrate grounds for vacatur for the reasons discussed above. <u>Substantial Prejudice</u> LCE also seeks to vacate the award pursuant to Code of Civil Procedure section 1286.2, subdivisions (a)(3) and (a)(5), which mandate vacatur where "[t]he rights of the party were substantially prejudiced by misconduct of a neutral arbitrator" or where "[t]he rights of the party were substantially prejudiced by the refusal of the arbitrators . . . to hear evidence material to the controversy or by other conduct of the arbitrators contrary to the provisions of this title," respectively. LCE contends that while all three parties sought to admit deposition transcript excerpts into evidence, Klinger granted Chapwood and CCM's requests without condition but required LCE to either substantially reduce the deposition transcript portions it sought to admit or pay $5,000. (Resp. at 11:20-25.) Specifically, in a 4/11/25 email Klinger stated: > Mr. Cowan: > You have added approximately 575 pages of deposition transcript to the record. Assuming 330 pages of deposition transcript typically comes to 8 hours or 42 pages per hour, 575 pages would translate out to 13.5 hours. Now, I know that I can read a deposition transcript faster than what it takes to take a deposition, but, nonetheless, we are talking about at least an

> additional 10 hours of my time. So, the option is to add another $5,000 to the deposit for my arbitration fees or reduce your designation substantially.
>
> Please advise your thoughts.
>
> I would also like to hear from the other parties on this subject.

(Cowan Decl., ¶ 14, Ex. B (ROA 364).)

After the parties provided further feedback, Klinger ultimately decided to require LCE "either deposit an additional $5,000 or substantially reduce the deposition designations to something reasonable." (Cowan Decl., ¶ 14, Ex. B (ROA 364).)

As an initial matter, the $5,000 was not a fee for admitting documents into evidence, but as stated by Klinger, fees for her services as an arbitrator. As she explained, the additional pages added by LCE would take at least an additional ten hours of her time, which would result in an additional $5,000 to the deposit for her arbitration fees.

While LCE cites to Rule 57(b) of the AAA's Construction Industry Arbitration Rules and Mediation Procedures, that rule refers to expenses of the arbitrator and not the arbitrator's fees.

Moreover, even if Klinger's actions constituted misconduct or an effective refusal to hear evidence, LCE has not sufficiently demonstrated substantial prejudice.

LCE contends as it lacked the financial resources to pay the $5,000, it was compelled to substantially reduce its evidentiary submission and deposition transcript excerpts it had identified as material to its claims and defenses were never placed before the arbitrator. (Cowan Decl., ¶ 14.) LCE contends this constituted "substantial prejudice" as set forth in sections 1286.2, subdivisions (a)(3) and (a)(5).

Mere disappointment with an arbitrator's decision is not sufficient to prove substantial prejudice. (*See Taheri Law Group, A.P.C. v. Sorokurs* (2009) 176 Cal.App.4th 956, 964.) "To find substantial prejudice, the court must accept, for purposes of analysis, the arbitrator's legal theory and conclude that the arbitrator might well have made a different award had the evidence been allowed." (*Hall v. Superior Court* (1993) 18 Cal.App.4th 427, 439.)

LCE contends only "[d]eposition transcript excerpts that LCE had identified as material to its claims and defenses were never placed before the arbitrator." (Resp. at 12:22-23.) LCE does not identify the nature of those excerpts, what issues they addressed, how they were material to its claims and defenses, or why they were necessary for the arbitrator's analysis of the case. As such, based only on LCE's conclusory statement that the excerpts were "material," the Court is

		unable to determine whether the "arbitrator might well have made a different award had the evidence been allowed." Accordingly, the Court finds LCE has not demonstrated the arbitrator's conduct resulted in substantial prejudice to LCE pursuant to section 1286.2, subdivisions (a)(3) and s (a)(5). <u>Judgment re: Mechanic's Lien</u> In addition to requesting the Court confirm the arbitrator's award and enter judgment accordingly, Chapwood also seeks a judgment that no mechanics lien exists based on the arbitrator's amended final award awarding nothing to LCE on its counter-claim against Chapwood. (Abeltin Decl., Ex. E (ROA 352).) Neither LCE nor CCM address this issue in their response. Code of Civil Procedure section 1286 provides, "If a petition or response under this chapter is duly served and filed, the court shall confirm the award as made, whether rendered in this state or another state, unless in accordance with this chapter it corrects the award and confirms it as corrected, vacates the award or dismisses the proceeding." Thus, "[o]nce a petition to confirm an award is filed, the superior court has only four courses of conduct: to confirm the award, to correct and confirm it, to vacate it, or to dismiss the petition. The trial court is empowered to correct or vacate the award, or dismiss the petition, upon the grounds set out in the pertinent statutes; '[o]therwise courts may not interfere with arbitration awards.'" (*Cooper v. Lavely & Singer Professional Corp*. (2014) 230 Cal.App.4th 1, 11 [cleaned up].) If the arbitrator's award is confirmed, "judgment shall be entered in conformity therewith." (Code Civ. Proc., § 1287.4.) In requesting the Court enter a judgment that a mechanic's lien on the subject property does not exist, Chapwood is requesting the Court enter an additional term of the judgment which it is not empowered to do pursuant to section 1286. Nor would such a judgment be in conformity with the arbitrator's final award pursuant to section 1287.4. As such, the Court declines to enter judgment regarding the mechanic's lien in connection with a confirmation of the arbitrator's award. The Court GRANTS Defendant/Cross-complainant Chapwood, L.P.'s Petition to Confirm Arbitration Award and Request Entry of Judgment. The Court ORDERS Chapwood, L.P to submit a revised proposed judgment.

8.	**GUNN VS. GREEN MEADOWS HOME HEALTH CARE, INC** **2023-01370855**	**MOTION FOR SANCTIONS** Defendant Cerna Healthcare, LLC dba Cerna HomeCare's Motion for Sanctions is GRANTED in part. Defendant moves for sanctions based on Plaintiff's incorrect allegation at paragraph 95 of the Complaint that Plaintiff was 82 years old at the time of Defendants' conduct, when in fact Plaintiff was approximately 57 at the time of the events in the Complaint. However, paragraph 4 of the Complaint stated Plaintiff was 59 years old, which Plaintiff's discovery responses confirmed. Paragraph 4 states Plaintiff is a "dependent adult" under the Elder and Dependent Adult Civil Protection Act. The motion is unopposed. Plaintiff has filed a motion for leave to amend to state her correct age, set for hearing on 6/2/26. Plaintiff's counsel has filed a motion to be relieved but the notice of motion does not state a hearing date. Defendant asserts Plaintiff's incorrect age makes her Elder Abuse claim non-viable and seeks sanctions of $2,060.00 as well as an order striking Plaintiff's first cause of action for elder/dependent abuse. The unopposed motion is granted as to monetary sanctions of $2,060 against Plaintiff's counsel for making the error as to Plaintiff's age and failing to promptly correct it, causing Defendant to incur costs to correct the error. The motion is denied as to the request to dismiss the first cause of action. Defendant may bring an appropriate dispositive motion if it believes Plaintiff does not qualify as a dependent adult under the Act.
9.	**IRVINE SPECTRUM CENTER LLC VS. N&P LV HOLDINGS LLC** **2025-01459549**	**MOTION FOR TERMINATING SANCTIONS** Plaintiff Irvine Spectrum Center, LLC's Motion for Sanctions is GRANTED in part and DENIED in part. Terminating sanctions are GRANTED against Defendant N&P LV Holdings, LLC. Defendant's answer to the Complaint is STRICKEN. The court may impose monetary, issue, evidence, or terminating sanctions on a party who misuses the discovery process. (Code Civ. Proc. § 2023.030(a)-(d).) Failing to respond to discovery and disobeying a court order are misuses of the discovery process. (Code Civ. Proc. § 2023.010(d)(g).) Here, Defendant has failed to provide responses and pay the sanction as ordered by this Court. Thus,

		Defendant has failed to respond to discovery and disobeyed a court order. Therefore, Defendant's conduct is sanctionable. <u>Nonmonetary Sanctions</u> Defendant's conduct warrants nonmonetary sanctions. Defendant has not responded to either the Motion to Compel or this Motion. Monetary sanctions failed to compel any action from Defendant; thus, nonmonetary sanctions are appropriate. Terminating sanctions are appropriate when the "violation is willful, preceded by a history of abuse, and the evidence shows that less severe sanctions would not produce compliance with the discovery rules." (*Mileikowsky v. Tenet Healthsystem* (2005) 128 Cal.App.4th 262, 279.) "[A]bsent unusual circumstances, such as repeated and egregious discovery abuses, two facts are generally prerequisite to the imposition of a nonmonetary sanction. There must be a failure to comply with a court order and the failure must be willful." (*Lee v. Lee* (2009) 179 Cal.App.4th 1553, 1559.) Defendant was served with the notice of ruling by mail and email on October 14, 2025. (ROA 31.) Thus, Defendant knew of the order and failed to comply. Thus, its failure to comply with this Court's order is willful. Additionally, Defendant has not opposed this Motion seeking terminating sanctions. Thus, if the threat of terminating sanctions being imposed and a prior court order did not compel Defendant to participate in the action, less severe sanctions would not compel compliance. Therefore, terminating sanctions are appropriate. Accordingly, the Defendant's Answer is stricken and default is entered against Defendant. <u>Monetary Sanctions</u> "[S]anctions may not be imposed solely to punish the offending party." [*Kwan Software Engineering, Inc. v. Hennings* (2020) 58 Cal.App.5th 57, 75.) Imposing additional monetary sanctions would solely punish Defendant because previous monetary sanctions were insufficient to compel compliance. Thus, Plaintiff's request for monetary sanctions is denied. Plaintiff to give notice.
10.	**AYERS VS. BMW OF NORTH AMERICA, LLC** **2025-01510262**	**DEMURRER TO COMPLAINT** The hearing on the Demurrer to the Complaint brought by Defendant BMW of North America (ROA No. 15) is VACATED. The Court previously continued this demurrer and ordered compliance with Code of Civil Procedure section 430.41. (ROA No. 19.) Defendant was served this order by email, on April 21, 2026. (ROA No. 54.) Pursuant to this prior order, a declaration establishing compliance with Code of Civil Procedure section 430.41 was due to

		be filed by Defendant no later than May 12, 2026; however, no compliance has been shown. As previously indicated, the Court will not turn to the merits of the demurrer until strict compliance with Code of Civil Procedure section 430.41 is shown. Upon such a showing, Defendant may seek to have this matter reset.
11.	**TORRES VS. CITY OF HUNTINGTON BEACH 2023-01334230**	**MOTION FOR SUMMARY JUDGMENT AND/OR ADJUDICATION** Regarding Defendant Malco Maintenance's Motion for Summary Judgment on the City of Huntington Beach's Cross-Complaint, the Court entered an order approving the good-faith settlement between Plaintiff and moving party on 5/15/26. Movant's counsel shall appear at the hearing to state whether the motion should remain on the Court's calendar in light of the approval of the good-faith settlement. If Movant is maintaining the motion, the Court will continue the hearing to allow moving Defendant and Cross-Complainant City to file supplemental briefs addressing the effect of the good faith settlement on the City's Cross-Complaint.